

June 02, 2021



U.S. Department
of Transportation

East Building, PHH-30

1200 New Jersey Avenue
S.E.
Washington, D.C. 20590

Pipeline and Hazardous
Materials Safety Administration

DOT-SP 21172

EXPIRATION DATE: 2022-12-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: North Carolina Department of
Agriculture & Consumer Services
Raleigh, NC
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-time, one-way transportation in commerce of certain infectious substances of Division 6.2, and additional hazardous materials of Divisions 4.1, 6.1, and Classes 3, 8, and 9 packaged in alternative packagings (freezers) in a dedicated truck by highway. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§172.301(a) and 172.301(c) marking requirements; §§ 173.196(a) and (b), 173.199, 173,201, 173.202, 173.203, 173.211, 173.212, and 173.213 in that packaging requirements are waived;

Tracking Number: 2021014375

June 02, 2021

§177.848(d) in that segregation requirements are waived;
and 178.609 in that test requirements for packagings are
waived, except as specified herein.

5. BASIS: This special permit is based on the application of North Carolina Department of Agriculture & Consumer Services dated January 8, 2021, submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Acetone	3	UN1090	II
Acetonitrile	3	UN1648	II
Alkaloids, solid, n.o.s. or Alkaloid salts, solid, n.o.s. poisonous	6.1	UN1544	I, II, and III
Alkylphenols, solid, n.o.s. (including C2-C12 homologues)	8	UN2430	I, II, and III
Aminopyridines (o-; m-; p-)	6.1	UN2671	II
Arsenical pesticides, liquid, toxic	6.1	UN2994	I, II, and III
Biological substance, Category B	6.2	UN3373	N/A
Bipyridilium pesticides, solid, toxic	6.1	UN2781	I
Bipyridilium pesticides, solid, toxic	6.1	UN2781	II and III
Brucine	6.1	UN1570	I
Cacodylic acid	6.1	UN1572	II
Carbamate pesticides, solid, toxic	6.1	UN2757	I

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Chloroform	6.1	UN1888	III
Chlorophenols, solid	6.1	UN2020	III
Corrosive liquid, acidic, organic, n.o.s	8	UN3265	I, II, and III
Coumarin derivative pesticides, solid, toxic	6.1	UN3027	I, II, and III
Environmentally hazardous substance, liquid, n.o.s.	9	UN3082	III
Environmentally hazardous substance, solid, n.o.s	9	UN3077	III
Flammable solids, organic, n.o.s.	4.1	UN1325	II and III
Formic acid with more than 85% acid by mass	8	UN1779	II
Hexachlorobenzene	6.1	UN2729	III
Hexanes	3	UN1208	II
Infectious substances, affecting humans	6.2	UN 2814	N/A
Medicine, solid, toxic, n.o.s	6.1	UN3249	II and III
Metaldehyde	4.1	UN1332	III
Methanol	3	UN1230	II
Methyl acetate	3	UN1231	II
Methyltetrahydrofuran	3	UN2536	II

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Naphthalene, crude or Naphthalene, refined	4.1	UN1334	III
Nicotine	6.1	UN1654	II
Nitriles, liquid, toxic, n.o.s.	6.1	UN3276	I, II, and III
Organophosphorus compound, liquid, toxic, n.o.s	6.1	UN3278	I, II, and III
Organophosphorus pesticides, liquid, toxic	6.1	UN3018	I, II, and III
Organophosphorus pesticides, solid, toxic	6.1	UN2783	I, II, and III
Pesticides, liquid, toxic, n.o.s.	6.1	UN2902	I, II, and III
Pesticides, solid, toxic, n.o.s.	6.1	UN2588	I and II
Pesticides, solid, toxic, n.o.s.	6.1	UN2588	III
Polychlorinated biphenyls, solid	9	UN3432	II
Pyrethroid pesticide, liquid toxic	6.1	UN3352	I, II, and III
Pyrethroid pesticide, solid, toxic	6.1	UN3349	I, II, and III
Strychnine or Strychnine salts	6.1	UN1692	I
Toluene	3	UN1294	II
Toxic by inhalation liquid, n.o.s. with an LC50 lower than or equal to 200 ml/m3 and saturated vapor	6.1	UN3381	I

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
concentration greater than or equal to 500 LC50			
Toxic liquid, inorganic, n.o.s	6.1	UN3287	I, II, and III
Toxic solids, organic, n.o.s.	6.1	UN2811	I, II, and III
Toxic, liquids, organic, n.o.s.	6.1	UN2810	I
Toxic, liquids, organic, n.o.s.	6.1	UN2810	II and III
Toxins, extracted from living sources, solid, n.o.s.	6.1	UN3462	I, II, and III
Triazine pesticides, solid, toxic	6.1	UN2763	I, II, III

*Infectious substances for which effective treatments and preventive measures are not usually available are not allowed under this special permit.

7. SAFETY CONTROL MEASURES:

a. PACKAGING

(1) Infectious substances and biological substances of Division 6.2, as listed in Paragraph 6, must be packed as follows:

(i) Primary and secondary packaging -

(A) Leakproof screw-cap cryovial with a capacity of not more than 2 ml, placed in a cardboard box with a water-resistant coating containing not more than 100 primary receptacles separated by a cardboard grid insert;

June 02, 2021

(B) Leakproof rubber-stoppered glass vial with a capacity of one lyophilized microorganism pellet, placed in a cardboard box with water-resistant coating containing not more than 20 primary receptacles separated by a foam insert;

(C) Leakproof foil-lined plastic pouch containing a plastic container with the capacity of not more than one lyophilized microorganism pellet, placed in a plastic screw-top tub containing not more than 6 primary receptacles;

(D) Leakproof glass vial with a capacity of not more than one lyophilized pellet, placed in a screw-top metal canister containing not more than two primary receptacles;

(E) Leakproof cryovial with a capacity of not more than 1.5 ml, placed in a box with an internal grid divider holding not more than 81 primary receptacles. The boxes are then sealed in a plastic bag;

(F) Polystyrene tubes with a capacity of not more than 5 ml, placed in a cardboard box containing not more than 40 primary receptacles, separated by cardboard. The boxes must be sealed with tape and placed in a sealed plastic bag;

(G) Screw-cap conical tube with a capacity of not more than 50 ml, placed in a holder to prevent contact. The holders are placed in a sealed bag with not more than 25 tubes and placed into a cardboard or expanded polystyrene (EPS) container;

(H) Screw-cap conical tube with a capacity of not more than 15 ml, placed in holders to prevent contact between them. The holders are placed in a sealed bag containing not more than 50 tubes and placed into a cardboard or EPS container;

(I) Screw-cap plastic flask placed in a sealed bag, then placed in a cardboard or EPS container;

(J) Small specimen bag and sealed containers placed in a sealed plastic bag and consolidated in a cardboard or EPS container; or

(K) Polypropylene 96-well sample plate with a capacity of 1 ml per well, placed in a double-sealed plastic bag, and placed in a cardboard or EPS container.

(L) Closed boxes shall be capable of withstanding cryogenic storage. Any void space shall be filled with absorbent material. All space between containers and outer packaging walls must be filled with cushioning material such that materials cannot shift around.

(ii) Outer packaging:

(A) Five -80°C chest freezers;

(B) One -80°C upright freezer with one outer door;

(C) Two -40°C upright freezers with outer insulated doors;

(D) One -80°C upright freezer with two sets of insulated doors;

(E) One -20°C upright freezer with two sets up insulated doors; or

(F) One 2-8°C upright refrigerator with two glass sliding doors.

(G) The bottom of each outer packaging must be lined with absorbent material suitable to the materials being transported.

(H) The outermost doors must be locked and secured by at least two methods (lock, bands, shrinkwrap, etc.) to prevent opening during transit.

(2) Laboratory standard reference materials and dilute pesticide solutions in solvent, as listed in Paragraph 6, must be packed as follows:

(i) Primary and secondary packaging:

(A) 342 bottles, packaged in 29 cardboard boxes with inserts. The boxes are further packed into three gray totes;

(B) 16 bottles, packaged in one cardboard box with inserts;

(C) 58 bottles, packaged in five cardboard boxes with inserts;

(D) 39 bottles, packaged in seven cardboard boxes with inserts;

(E) 10 bottles, packaged in one cardboard box with inserts;

(F) 11 bottles, packaged in one cardboard box with inserts;

(G) 84 bottles packaged in seven cardboard boxes with inserts. The boxes are further packed into 1 gray tote;

(H) 115 bottles packaged in eight cardboard boxes with inserts;

(I) 19 bottles packaged in two cardboard boxes with inserts;

(J) 249 bottles, not exceeding 100 ml, in 25 Globe Scientific cardboard boxes with inserts;

June 02, 2021

(K) 10 bottles, not exceeding 100 ml, in one Global Scientific cardboard box with inserts;

(L) 100 25-ml bottles and two 1-ml ampule packaged in 16 Globe Scientific cardboard boxes with inserts; or

(M) 395 bottles, not exceeding 100 ml, in 50 Globe Scientific cardboard boxes with inserts.

(N) Closed boxes shall be capable of withstanding cryogenic storage. Any void space shall be filled with absorbent material. All space between containers and outer packaging walls must be filled with cushioning material such that materials cannot shift around.

(ii) Outer packaging:

(A) Two -20°C freezers with insulated doors, and

(B) Six 0°C refrigerators with insulated doors.

(C) The bottom of each outer packaging must be lined with absorbent material suitable to the materials being transported.

(D) The outermost doors must be locked and secured by at least two methods (lock, bands, shrinkwrap, etc.) to prevent opening during transit.

b. OPERATIONAL CONTROLS:

(1) This special permit authorizes the transport of packages containing infectious substances, biological substances, laboratory standard reference materials, and dilute pesticide solutions in solvent using a dedicated refrigerated truck. The loading of the

June 02, 2021

substances must be performed by trained company employees.

(2) Packages containing infectious substances and biological substances shall be transported in a separate shipment from packages containing laboratory standard reference materials and dilute pesticide solutions in solvent.

(3) The substances within the outer packaging must be kept within the operating temperatures of the freezers and refrigerators and monitored during transport.

(4) All outer packagings must be secured against movement within the transport vehicle.

(5) Emergency contact information must be securely attached to the outside of each outer packaging.

(6) A legible, itemized list of contents including the proper shipping name and identification number, as well as an emergency contact number must be securely attached to the outside of each outer packaging.

(7) Emergency equipment necessary to mitigate a spill must accompany each transport vehicle.

(8) When transporting infectious materials described in §172.800(b)(13), a security plan conforming with §172.800 must be in place.

(9) The cargo area of the transport vehicle must be locked at all times during transportation.

(10) Marking - An inventory with the proper names and identification number will be attached to each outer packaging, i.e., refrigerator/freezer. The technical names will be affixed to each individual primary container, rather than next to the proper shipping name.

(11) The requirements of 172.301(c) are waived in that the special permit number will not be marked on the outside of each package.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)– “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Ryan Vierling/KAH